

ASCII MASTER FLOW – PANEL 1/9: Article 39A and the legal-services ladder

ROOT QUESTION

How can justice become affordable and proximate without sacrificing fairness?

ARTICLE 39A

equal-opportunity legal system + free legal aid.

1987 ACT LADDER

NALSA -> State Authority -> High Court Committee

-> District Authority -> Taluk Committee.

ARTICLE 21 LINK

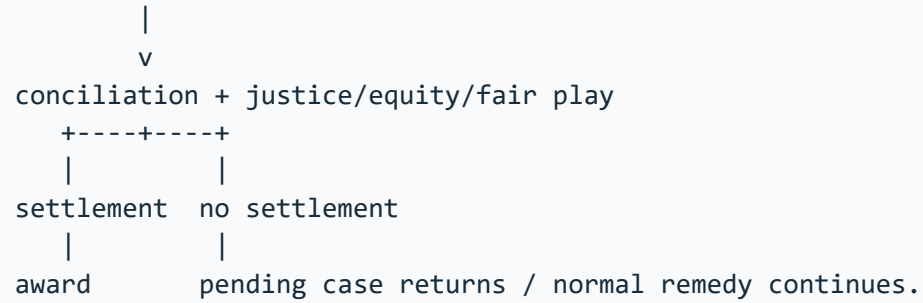
Hussainara Khatoon (1979) -> legal aid and speedy justice support fair procedure.

TRAP

Directive Principle anchor != direct creation of every forum.

ASCII MASTER FLOW – PANEL 2/9: Ordinary Lok Adalat: compromise is the jurisdictional core

PENDING CASE / PRE-LITIGATION MATTER



State of Punjab v. Jalour Singh (2008)
ordinary Lok Adalat cannot adjudicate merits.

NON-COMPOUNDABLE OFFENCE -> excluded.

ASCII MASTER FLOW – PANEL 3/9: Award finality, consent and limited control

GENUINE COMPROMISE

|
v

award -> deemed civil-court decree -> final and binding -> no statutory appeal.

COURT FEE

refund route for referred case under governing law.

LIMITED CONSTITUTIONAL CONTROL

fraud | no genuine consent | jurisdictional defect | natural-justice failure.

Afcons Infrastructure v. Cherian Varkey Construction (2010) -> structured ADR referral guidance.

TRAP

finality does not create consent or jurisdiction.

ASCII MASTER FLOW – PANEL 4/9: Permanent Lok Adalat: public-utility hybrid

PRE-LITIGATION PUBLIC-UTILITY DISPUTE

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      |  
      v  
PLA conciliation  
  +----+----+  
settlement  failure  
  |          |  
award       eligible merits decision within statute.
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InterGlobe Aviation v. N. Satchidanand (2011) -> ordinary/PLA distinction.

Bar Council of India v. Union of India (2012) -> PLA design upheld.

Canara Bank v. G.S. Jayarama (2022) -> conciliation then limited adjudication.

LIMIT

sector + offence bar + current notified pecuniary scope.

ASCII MASTER FLOW – PANEL 5/9: Operational Lok Adalat forms and digital access

NATIONAL | MEGA | MOBILE | CONTINUOUS/DAILY | E-LOK ADALAT

|
administrative mode, scale, mobility or technology

|
underlying ordinary/PLA legal character remains unchanged.

DIGITAL TEST

identity + private communication + language + disability access
+ document access + offline alternative.

TRAP

online format does not authorise compelled settlement.

ASCII MASTER FLOW – PANEL 6/9: Gram Nyayalaya: doorstep court with appellate safeguards

GRAM NYAYALAYAS ACT 2008

State establishment + High Court consultation.

NYAYADHIKARI

qualified as Judicial Magistrate First Class.

JURISDICTION

scheduled civil/criminal matters -> local/mobile sittings -> flexible procedure.

APPEAL

criminal -> Sessions Court | civil -> District Court, subject to exceptions.

TRAP

Gram Nyayalaya != Panchayat | khap | mediation camp | Lok Adalat.

ASCII MASTER FLOW – PANEL 7/9: Family, Commercial, Fast Track, Special and evening courts

FAMILY COURT

1984 Act -> adjudication + settlement + privacy.

COMMERCIAL COURT

2015 Act -> specified-value commercial disputes + case management.

FAST TRACK / EVENING COURT

capacity or scheduling design under ordinary judicial authority.

SPECIAL COURT

exact parent statute -> subject/person/offence jurisdiction.

Patil Automation v. Rakheja Engineers (2022)

commercial pre-institution mediation mandatory absent statutory urgent-relief exception.

TRAP

label != constitutional status or common appeal route.

ASCII MASTER FLOW – PANEL 8/9: Mediation, tribunals and fairness reform

MEDIATION ACT 2023

neutral facilitation -> party-made settlement; verify commencement/rules.

TRIBUNAL

specialised statutory adjudication + constitutional review.

COURT

authoritative judicial hierarchy and appeal.

REFORM TEST

cost + time + consent quality + advice + staff + reasons
+ digital inclusion + compliance + review.

VERDICT

forum must match dispute; disposal volume alone is not justice.

ASCII MASTER FLOW – PANEL 9/9: UPSC synthesis: access with consent, competence and review

PRELIMS FIREWALL

Art 39A | 1987 Act | ordinary compromise-only | PLA public-utility hybrid
| deemed decree/finality | Gram/Family statutory courts | forms != new courts.

MAINS SPINE

anchor -> ladder -> ordinary process -> PLA distinction -> other courts
-> mediation/tribunal firewall -> fairness/digital implementation -> reform.

PYQ ROUTE

legal-aid eligibility | NALSA | Lok Adalats versus arbitration.

CONCLUSION

access is constitutional only when proximity is joined to voluntariness and legality.